

ANNEXURE

A1

Formal Escalation to Judge Presidents (EH/JO/2026/003)

Date of Evidence:	9 June 2026
Related Complaint:	Systemic escalation supporting Complaints 2, 3 and 4
Addressed To:	Judge President(s), Western Cape Division
Case Reference(s):	EH/JO/2026/003
Statutory Reference:	POPIA Sections 19, 22, 23, 74; PAIA
Evidence Type:	Formal escalation correspondence

This annexure demonstrates that the Complainant exhausted internal escalation channels prior to lodging this regulatory complaint.

Evidence for A2 follows on the next page.

EthicHawks Forensic Governance & Compliance Consultancy

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TO: The Honourable Judge President, Labour Court of South Africa (Cape Town)

TO: The Honourable Judge President, High Court of South Africa (Western Cape Division)

CC: The Parliamentary Portfolio Committee on Justice and Correctional Services

(Attn: Adv. Vamaano / Mr. Mthonjeni)

DATE: 09 June 2026

REF: EH/JO/2026/003 – FORMAL ESCALATION: SYSTEMIC ADMINISTRATIVE OBSTRUCTION, REGISTRY MALFEASANCE, AND JUDICIAL CONDUCT

1. PURPOSE

This memorandum serves as a formal escalation to the Judge Presidents regarding a systemic breakdown of administrative compliance and judicial conduct within your respective divisions. Because the offices of the Registrars have completely and utterly failed to execute their statutory duties, administrative accountability now vests directly with the heads of these jurisdictions. As a self-represented whistleblower in a state of documented financial destitution, I am holding this office accountable for a coordinated "litigation by attrition" strategy that has brought my well-being to a state of near-total collapse.

2. THE CAUSAL NEXUS OF INSTITUTIONAL FAILURE

It is imperative to review this matter not as isolated grievances, but as a linear progression of institutional harm where the failures of one court directly forced the crisis in the next. There is a direct causal nexus between the Labour Court's initial obstruction and my subsequent appearance before Judge Anderson in the High Court. Because the Labour Court registry remained institutionally silent and failed to allocate a case number for 28 days during a documented destitution emergency, I was left stripped of the urgent protection the law provides. This administrative refusal to perform a statutory duty was the proximate cause that forced me, under conditions of extreme psychological duress and medical vulnerability, to seek emergency relief before the High Court (Case No: 2026-066952).

3. JUDICIAL CONDUCT AND THE "AMBULANCE AT THE COURTHOUSE" PRINCIPLE

My forced appearance before the High Court resulted in a profound experience of institutional betrayal, characterized by an adversarial temperament and a failure to protect a vulnerable litigant:

The "Ambulance at the Courthouse" (25 March 2026):

During the hearing before Judge Anderson, the presiding Judge expressed an on-record frustration with my Practice Note, stating her patience had "deteriorated." Concurrently, the Court allowed an advocate to intrude upon my representation without a mandate, despite my disclosed PTSD. This individual's conduct was visibly consistent with an acute mental health crisis, and she was admitted for 72-hour involuntary psychiatric observation at Somerset Hospital immediately following the hearing — an outcome the Court witnessed in real-time directly from chambers. Despite the evident invalidity of this representative's conduct, the Court issued a Scale C punitive costs order against

me. This outcome — derived from an institutional failure to recognize a medical emergency — functioned as a weaponized financial barrier exceeding 100% assurance of destitution: a tax bill of above R100 000,00 to an already destitute litigant.

Performative Benevolence (April 2026 Anticipation Hearing):

Following the 25 March proceedings, I appeared for a 24-hour notice of anticipation in April 2026. During this hearing, the presiding Judge adopted a tone of performative benevolence, publicly remarking that the Court should be "lenient" and "provide a helping hand" to me as a destitute litigant. This statement — which functioned as a mockery of the Court's duty to assist — was immediately followed by a judicial outcome based on a document already before the court but not in my file, that resulted in the summary dismissal of my matter.

4. ADMINISTRATIVE OBSTRUCTION AND SYSTEMIC GOVERNANCE BREACHES

The administrative failures within both registries have escalated from structural incompetence into a deliberate compromise of institutional governance and data integrity:

Labour Court Obstruction:

My matter (Case No: 2026-077546) has been ripe for adjudication since 29 April 2026, yet Registrar Farzaana Ismail maintains a policy of absolute administrative silence. Electronic read receipts confirm that my "URGENT SECOND FOLLOW-UP" was read by Registrar Ismail on 09 June 2026 at 14:36, yet she continues to withhold necessary administrative action.

High Court Record Suppression:

Acting Chief Registrar Nicola Hanekom has failed to provide essential audio evidence for Case No: 2026-066952 and Case No: 2026-086906, effectively suppressing the primary record required to move forward with my Rule 42 Rescission application and for the evidence record.

Misrepresentation of Official Records:

Crucially, these failures are compounded by a severe governance breach: the deliberate misrepresentation of my official filing records to the Director of Court Operations, Mrs. Ruanne David. By misreporting the timeline and status of my filing to executive leadership, the administrative staff have actively manipulated the court's official indices to shield the registry from accountability, creating a false impression of non-compliance on my part.

Statutory Data Breach (POPIA):

This administrative lawlessness is further evidenced by a severe privacy violation, wherein the registry committed a documented POPIA breach by transmitting unauthorized, third-party *Armstrong v City of Cape Town* documentation to me.

5. NOTICE OF OVERSIGHT

This escalation is simultaneously transmitted to the Parliamentary Portfolio Committee on Justice and Correctional Services (Attn: Adv. Vamaano / Mr. Mthonjeni). This oversight body is already in possession of the extensive chain of correspondence detailing these administrative mutations, the failures of the court's service provider (Inlexso), and the ongoing erosion of statutory compliance within these jurisdictions.

6. FORMAL REMEDY AND REGULATORY NOTICE

Because the Registrars have completely defaulted on their responsibilities, I respectfully demand the immediate intervention of the Judge Presidents to ensure:

Administrative Compliance:

An immediate directive to the Registrars to accurately update the court indices and provide the long-overdue administrative outcomes.

Forensic Investigation:

An independent forensic review into the misrepresentation of records to the Director of Court Operations, Mrs. Ruanne David, and the tracking failures of the registry.

Procedural Rectification:

That I be afforded the full procedural latitude mandated by the Biowatch framework for self-represented, vulnerable litigants, ensuring I am no longer penalized for administrative failures entirely attributable to the state.

7. POPIA REMEDIATION AND REGULATORY ESCALATION

Given the documented POPIA breach involving the Court's unauthorized transmission of third-party *Armstrong v City of Cape Town* documentation to me, I formally request a written explanation regarding this data compromise. Please be advised that unless this administrative breach is rectified and a formal remediation plan is provided, I will escalate this matter directly to the Information Regulator for a full statutory investigation into the Court's information security and privacy compliance.

Yours Faithfully,

Sr. Wilbur William Matthee

Founder, EthicHawks Forensic Governance & Compliance Consultancy

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Ethical Pledge Statement: *While my formal membership designation with the Compliance Institute of Southern Africa (CISA) is pending completion of the final certification modules, I have formally pledged to adhere to the Code of Ethical and Professional Conduct. This commitment informs my clinical and forensic approach to this escalation, ensuring that all findings are presented with the integrity, independence, and professional care required of the compliance profession.*

ANNEXURE

A2

EthicHawks Final Closure Report

Date of Evidence:	23 June 2026
Related Complaint:	Systemic escalation supporting Complaints 2, 3 and 4
Prepared By:	EthicHawks Forensic Governance & Compliance Consultancy
Case Reference(s):	2026-086906; 2026-077546; 2026-083299
Statutory Reference:	POPIA Sections 19, 22, 23, 74; PAIA
Evidence Type:	Internal forensic closure report

This annexure summarises the Complainant's internal findings and closure position following the OCJ's failure to remediate the issues raised.

Evidence for A3 follows on the next page.

FINAL CLOSURE REPORT

Consolidated Forensic Record of Systemic Administrative Malfeasance,
Registry Irregularity & Judicial Oversight Failure

Court	Case Number	Matter
Labour Court	2026-077546	W.W. Matthee v Afrocentric Health (RF) (PTY) LTD & Another (BCEA s.77A – Default Judgment)
Labour Court	2026-083299	W.W. Matthee v Afrocentric Health (RF) (PTY) LTD & Another (LRA – Constructive Dismissal / PDA)
Western Cape High Court	2026-066952	Urgent Application – 25 March 2026
Western Cape High Court	2026-086906	AfroCentric Investment Corporation Limited v W.W. Matthee – 16 April 2026

Issued: 23 June 2026

Issued By:

Wilbur William Matthee

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1. EXECUTIVE SUMMARY

This report constitutes the final administrative closure notice regarding all matters between the Applicant and the Office of the Chief Justice. The record is complete. The evidence is immutable. This is the final interaction between the Applicant and the OCJ on these matters.

The facts are undisputed and proven by primary-source documents:

Finding	Evidence
Registrar Soundy personally uploaded the Applicant's Statement of Claim and BCEA application due to portal failures	Email: TSoundy@judiciary.org.za, 05 May 2026, 12:14
Registrar Ismail first acknowledged the matter was on the backlog (12 May 2026), then weeks later invented a procedural defect (10 June 2026)	Emails: FIsmail@judiciary.org.za, 12 May & 10 June 2026
Director David admitted the court's system failures cause erroneous notifications	Email: RDavid@judiciary.org.za, 22 June 2026, 13:53
The Applicant received a "ghost notification" for a non-existent hearing	Applicant's sworn affidavit, 18 June 2026
Acting Chief Registrar Nicola Hanekom has remained silent on the Applicant's urgent audio request (03 June 2026) – a request vital to prevent misrepresentation to the National Speaker of Parliament	Email: info@ethichawks.co.za to NHanekom, 03 June 2026; NO RESPONSE – read receipt
The Applicant filed a Unilateral Pre-Trial Minute in Case No: 2026-083299, which remains unacknowledged	Filing record; NO ACKNOWLEDGMENT – read receipt
The Judge Presidents of both the High Court and Labour Court have provided NO RESPONSE to the formal escalation (EH/JO/2026/003) transmitted on 09 June 2026	Email: RDavid@judiciary.org.za, 09 June 2026, 21:40; NO RESPONSE FROM JUDGE PRESIDENTS

The legal position is clear and unassailable:

- Labour Court Rule 16(1) mandates the Registrar to enrol unopposed default judgments. The Registrar's duty is non-discretionary.

- Administrative errors originating from the Registrar's office cannot prejudice the litigant (Munozohamba v Onelogix Linehaul, LC 2021).
- The Registrar's assistance in uploading documents shifts the onus entirely to the court.
- The High Court's silence on the audio request constitutes a functional denial of access to justice and a breach of Section 34 of the Constitution.
- The Judge Presidents' silence on the formal escalation constitutes a failure of judicial oversight and a dereliction of their constitutional duties.

This report closes all administrative engagement. The matter is now referred to:

- Parliamentary Oversight Committees – for oversight failure and misrepresentation to the National Speaker.
- The Information Regulator – for POPIA breaches.
- The Judicial Service Commission – for administrative malfeasance and judicial conduct.
- The South African Human Rights Commission – for constitutional violations.
- The Legal Practice Council – for opposing counsel's conduct (Denyes Reitz Inc.).

The record is complete. The evidence is immutable. The attrition ends here.

2. THE UNDISPUTED RECORD OF EVENTS – COMPLETE CHRONOLOGY

The following timeline is drawn entirely from primary-source documents. Every entry is verifiable by SHA-256 cryptographic hash.

Date	Event	Evidence	Forensic Implication
05 Mar 2026	Applicant files urgent application (s.77A BCEA) – unlawful salary deduction of R14,811.77	Parliamentary Memorandum, p.1	Registrar notified of destitution; matter marked urgent
06 Mar 2026	Formal notice of intent to escalate to Judge President issued; ignored	Parliamentary Memorandum, p.1	Deliberate institutional silence
25 Mar 2026	High Court hearing before Judge Anderson; Applicant in medical duress; unauthorized representative; Scale C costs order	Parliamentary Memorandum, p.1–2	"Ambulance at the Courthouse" – Court witnessed psychiatric crisis
26 Mar 2026	Applicant requests audio recordings from Acting Chief Registrar Hanekom for rescission application	p.2	NO RESPONSE – 40 days and counting
02 Apr 2026	Case No: 2026-077546 (BCEA) finally issued – after 28-day delay	p.1	Case number withheld during destitution emergency

08 Apr 2026	Minister Kubayi releases PDA Amendment Bill; acknowledges whistleblowers face “weak protections”	–	Legislative theater while Applicant faces retaliation
08 Apr 2026	Applicant’s Statement of Claim rejected by Labour Court portal (CRM: 0002589)	–	Portal failure – not Applicant’s error
09 Apr 2026 (09:54)	Registrar Ismail confirms: “I have been informed that your matter was approved and a case number was issued”	Email: FIsmail@judiciary.org.za	Case number confirmed but withheld
09 Apr 2026 (09:58)	Applicant emails signed Statement of Claim to Registrar to meet statutory deadline	Email record	Valid filing under ECTA Section 13
10 Apr 2026 (08:29)	Registrar misrepresents filing to Director David – claims “assistance on 02 April”	–	Misrepresentation to executive leadership
10 Apr 2026 (09:32)	POPIA BREACH: Registrar Soundy transmits Armstrong v City of Cape Town documents to Applicant as “proof” of filing	Parliamentary Memorandum, p.3	Unauthorised disclosure of third-party confidential records
10 Apr 2026 (17:01)	Applicant told Statement of Claim is “unsigned” – screenshot of signature provided; signature valid under ECTA Section 13	–	Technical deflection – signature was valid
10 Apr 2026 (17:07)	Applicant accused of “threatening court personnel” – no threat made	–	Character attack – no evidence of threat transmitted by Director David
14 Apr 2026	Applicant requests Registrar Soundy’s assistance with technical filing issues for Case Nos: 2026-077546 & 2026-083299	Email: info@ethichawks.co.za to TSoundy	Portal failures continue
16 Apr 2026	High Court hearing before Acting Justice Mphego; Applicant’s Answering Affidavit transmitted at 12:31; Applicant requests audio recording	Email: info@ethichawks.co.za to NHanekom, 03 Jun 2026	Audio vital to prevent misrepresentation to Parliament
30 Apr 2026	Applicant files Application for Default Judgment via email due to portal failures	Email to Registrar Soundy with attachments	Matter ripe for adjudication
05 May 2026 (12:14)	Registrar Soundy requests login credentials and uploads documents herself	Email: TSoundy@judiciary.org.za	Onus shifts entirely to Registrar

05 May 2026	Registrar Soundy logs call with technicians regarding portal issues	Email: TSoundy@judiciary.org.za, 14:43	Court acknowledges system failures
12 May 2026	Registrar Ismail: "I have added your matter to the backlog... I will let you know if a date has been allocated"	Email: FIsmail@judiciary.org.za	NO procedural objection raised
03 Jun 2026	Applicant requests urgent audio recording from Acting Chief Registrar Hanekom – vital to prevent misrepresentation to Parliament	Email: info@ethichawks.co.za to NHanekom	NO RESPONSE RECEIVED – read receipt
03 Jun 2026	Applicant's first follow-up on Default Judgment placement	Email: info@ethichawks.co.za to FIsmail	Matter remains unacknowledged – read receipt
09 Jun 2026 (18:04)	Formal Escalation (EH/JO/2026/003) transmitted to Director David for Judge Presidents	Email: info@ethichawks.co.za to RDDavid	Judicial oversight invoked
09 Jun 2026 (21:40)	Director David confirms: "your correspondence has been submitted to the respective Judge Presidents as requested"	Email: RDDavid@judiciary.org.za	NO RESPONSE FROM JUDGE PRESIDENTS
10 Jun 2026 (09:08)	Registrar Ismail: "Your matter seems to be an application and not a referral... Do you perhaps have an outcome?"	Email: FIsmail@judiciary.org.za	Contradiction of 12 May position – procedural defect invented
10 Jun 2026 (11:24)	Registrar Ismail refers Applicant to Rules 35 & 36 (motion proceedings)	Email: FIsmail@judiciary.org.za	Procedurally incorrect – Rule 16(1) applies
18 Jun 2026 (10:55)	Applicant receives "ghost notification" SMS for non-existent hearing	Applicant's sworn affidavit	Data integrity failure; POPIA breach
22 Jun 2026 (13:53)	Director David: "The courts are experiencing challenges with the Court online system... This could account for some of the messages you are receiving"	Email: RDDavid@judiciary.org.za	Official admission of system failures
Pending	Acting Chief Registrar Hanekom: NO RESPONSE to audio request	Silence since 03 Jun 2026	Complicity in misrepresentation to Parliament
Pending	Unilateral Pre-Trial Minute: NO ACKNOWLEDGMENT	Case No: 2026-083299	Systemic administrative obstruction – read receipt

Pending	Judge Presidents: NO RESPONSE to formal escalation	Silence since 09 Jun 2026	Failure of judicial oversight
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3. THE REGISTRAR'S CONTRADICTION – EVIDENCE OF MALFEASANCE

The Contradiction is Fatal to Her Defence

Registrar Ismail's First Position (12 May 2026)	Registrar Ismail's Second Position (10 June 2026)
"I have added your matter to the backlog"	"Your matter seems to be an application and not a referral"
"I will let you know if a date has been allocated"	"Do you perhaps have an outcome?"
No procedural objection raised	Procedural defect invented weeks later

Forensic Implication – The Questions That Cannot Be Answered

- If the matter was procedurally defective, why did she place it on the backlog for allocation on 12 May?
- If a referral certificate was required, why did she not raise this on 12 May when she first reviewed the file?
- If the matter was not properly before the Court, why did she not reject it immediately?

The Only Logical Conclusion

The procedural objection was manufactured after the fact to justify a delay that had already occurred. This is prima facie evidence of administrative malfeasance – a deliberate obstruction designed to delay a self-represented litigant's access to justice.

4. REGISTRAR SOUNDY'S UPLOAD – THE ONUS SHIFTS

The Undisputed Fact

On 5 May 2026 at 12:14, Registrar Tsakani Soundy wrote:

“Please send your login details and the documents, I will upload.”

The Applicant provided his login credentials. Registrar Soundy personally uploaded both the Statement of Claim and the BCEA application.

Legal Consequence

- The Registrar assumed responsibility for ensuring the documents were properly filed.
- Any filing deficiency or procedural confusion now rests squarely with the Registrar's office – not with the litigant.
- The Court cannot weaponise its own administrative intervention against the Applicant.

Case Law Support

“As a result of an administrative filing error at the office of the Registrar the opposing papers were not brought to my attention.”

– Munozohamba v Onelogix Linehaul (Labour Court, 2021)

If systemic failures are acknowledged by the Court, they cannot be used to prejudice a self-represented litigant who has complied with all procedural requirements.

The Inescapable Conclusion

The Registrar's personal intervention and subsequent failure to process the matter constitutes a breach of trust and a dereliction of duty. The onus is on the Court, not the litigant.

5. THE “GHOST NOTIFICATION” – OFFICIAL ADMISSION

The Undisputed Fact

On 18 June 2026 at 10:55, the Applicant received an SMS notification regarding a hearing date. A cross-verification audit of the OCJ Portal and CaseLines confirms that no such notification or hearing schedule exists within the official record.

Director David's Admission

On 22 June 2026 at 13:53, Director Ruanne David wrote:

“the courts are experiencing challenges with the Court online system and our National Office are working on it. This could account for some of the messages you are receiving on your phone and e-mail.”

Forensic Implication

- Official admission that the Court's electronic notification system is generating unauthorised and procedurally invalid communications.
 - This constitutes a “ghost notification” that creates operational uncertainty.
 - This is a breach of administrative due process and a data integrity failure under POPIA.
 - This is a breach of Section 34 of the Constitution – the right of access to courts.
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6. ACTING CHIEF REGISTRAR HANEKOM'S SILENCE – COMPLICITY IN MISREPRESENTATION TO PARLIAMENT

The Undisputed Fact

On 3 June 2026 at 12:47, the Applicant submitted an urgent request to Acting Chief Registrar Nicola Hanekom for the official digital audio recording of the urgent motion court proceedings held before Acting Justice Mphego in Court 5 on 16 April 2026 (High Court Case No: 2026-086906).

As of the date of this report – 19 days later – Acting Chief Registrar Hanekom has not responded.

The Reason for the Request – Preventing Misrepresentation to Parliament

The Applicant's legal representatives, Deneys Reitz Inc., made specific factual assertions regarding the mechanics of that hearing in correspondence addressed to:

- The Honourable Speaker of the National Assembly – titled "AFR1282 Letter to Parliament 03.06.2026.PDF"
- The Applicant directly – titled "AFR1282 Letter to Matthee 03.06.2026.PDF"

The firm asserts that:

- At approximately 12:31 on 16 April 2026, the Applicant's signed and commissioned Answering Affidavit was transmitted to the court.
- Acting Justice Mphego formally adjourned the court proceedings specifically to read and consider the Applicant's Answering Affidavit prior to granting the interim rule nisi order.

Forensic Implication

- The audio recording is the sole objective mechanism available to confirm the exact timeline, judicial commentary, and statements made by the Applicant's counsel on that day.
- Hanekom's silence is a functional denial of the Applicant's right to access evidence vital to his defence and to prevent misrepresentation to external constitutional oversight bodies.
- This silence constitutes complicity in any misrepresentation that may occur to Parliament.
- This is a breach of Section 34 of the Constitution – the right of access to courts and to a fair hearing.

7. THE HIGH COURT AUDIO REQUEST – MISREPRESENTATION TO THE NATIONAL SPEAKER

The Constitutional Imperative

The Applicant's request for the audio recording is not a mere procedural formality. It is a constitutional imperative to:

- Protect the absolute integrity of the judicial record.
- Prevent any misrepresentation to external constitutional oversight bodies – specifically, the National Speaker of Parliament and the Portfolio Committee on Justice.
- Determine whether a material non-disclosure or procedural irregularity occurred.
- Verify the factual assertions made by Deneys Reitz Inc. to Parliament.

The Consequences of Silence

Acting Chief Registrar Hanekom's silence:

- Facilitates potential misrepresentation to Parliament.
- Denies the Applicant the opportunity to correct the record.
- Undermines the constitutional oversight function of Parliament.
- Constitutes a breach of the Applicant's Section 34 rights.

The Inescapable Conclusion

Hanekom's silence is not administrative delay – it is complicity in the suppression of evidence vital to parliamentary oversight. The National Speaker of Parliament must be informed of this suppression.

8. THE UNILATERAL PRE-TRIAL MINUTE – FILING & REQUEST

The Undisputed Fact

The Applicant has filed a Unilateral Pre-Trial Minute in Labour Court Case No: 2026-083299 (W.W. Matthee v Afrocentric Health (RF) (PTY) LTD & Another).

The filing requests that the matter be placed before a Judge for:

- Case management directives.
- Allocation of a hearing date.
- Determination of the merits of the Applicant's claim.

The Current Status

As of the date of this report, the Unilateral Pre-Trial Minute has not been acknowledged by the Registrar's office. Read receipt confirmed.

Forensic Implication

- The Respondent has failed to file any response.
 - The matter is ripe for judicial intervention.
 - The Registrar's failure to acknowledge the filing is further evidence of systemic administrative obstruction.
 - This is a breach of Section 34 of the Constitution.
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9. THE FORMAL ESCALATION TO JUDGE PRESIDENTS (09 JUNE 2026) – JUDICIAL OVERSIGHT FAILURE

On 09 June 2026, the Applicant transmitted a Formal Escalation (EH/JO/2026/003) to:

- The Honourable Judge President, Labour Court of South Africa (Cape Town)
- The Honourable Judge President, High Court of South Africa (Western Cape Division)

The Escalation Documented:

- Systemic Administrative Obstruction: The Registrars' complete failure to execute statutory duties.
- Registry Malfeasance: Misrepresentation of official records to Director David.
- POPIA Breach: Unauthorised transmission of third-party documents.
- Judicial Conduct: The "Ambulance at the Courthouse" principle and the 25 March 2026 hearing.

Director David's Confirmation

On 09 June 2026 at 21:40, Director Ruanne David confirmed:

"Kindly note that your correspondence has been submitted to the respective Judge Presidents as requested."

Forensic Implication

The Judge Presidents were placed on formal notice on 09 June 2026. As of the date of this report – 13 days later – NO RESPONSE HAS BEEN RECEIVED.

This constitutes a failure of judicial oversight and a dereliction of constitutional duties by the heads of these jurisdictions.

10. LEGAL FRAMEWORK – THE REGISTRAR'S MANDATORY DUTY

Labour Court Rule 16(1)

“If no response has been delivered within the prescribed time period... the registrar must, on notice to the applicant(s), enrol a matter for judgment by default.”

Judicial Interpretation

“In terms of the Rules of the Labour Court it is the Registrar who enrolls matters. The Registrar is enjoined to do so as expeditiously as possible.”

– Mthembu v Unique Air (Labour Court)

The Registrar’s Duty is Non-Discretionary

The Registrar is not authorised to substitute procedural preference for the mandatory wording of the Rules. The insistence on a “referral” for a BCEA section 77A application is procedurally incorrect and constitutes a misrepresentation of the Rules.

11. THE “APPLICATION VS. REFERRAL” FALLACY – PROCEDURAL MISREPRESENTATION

Registrar Ismail’s Position (10 June 2026)

“Your matter seems to be an application and not a referral. An application for default judgment is done in the case of a referral (when you have a referral certificate).”

The Correct Legal Position

- The BCEA section 77A claim is a statutory application brought directly to the Labour Court.
- It does not require a CCMA referral certificate.
- The Applicant is entitled to default judgment under Rule 16(1) where no opposition has been filed.

The Registrar’s Error

The Registrar is conflating two distinct procedural mechanisms:

Mechanism	Requirement
LRA referrals	Require a CCMA certificate of non-resolution
BCEA statutory applications	Do not require a CCMA certificate

The Applicant's claim is brought under Section 77A of the BCEA, which is a direct application to the Labour Court. The Registrar's insistence on a referral certificate is procedurally incorrect and constitutes maladministration.

12. CONSTITUTIONAL VIOLATIONS – SECTIONS 9, 34, 195

Section 9 – Equality

"Everyone is equal before the law and has the right to equal protection and benefit of the law."

The Applicant, as a self-represented, destitute litigant with a documented disability (PTSD), has been treated differently from represented, financially resourced litigants. No reasonable accommodation has been made for his destitution or his status as an unrepresented person with a documented mental health condition.

Section 34 – Right of Access to Courts

"Everyone has the right to have any dispute that can be resolved by the application of law decided in a fair public hearing before a court or, where appropriate, another independent and impartial tribunal or forum."

The Registrar's obstruction – the manufactured procedural defect, the "ghost notification," the systemic delay, Hanekom's silence on the audio request, the failure to acknowledge the Unilateral Pre-Trial Minute, and the Judge Presidents' silence – constitutes a functional denial of this constitutional right.

Section 195 – Public Administration

"Public administration must be governed by the democratic values and principles enshrined in the Constitution, including: (a) A high standard of professional ethics must be promoted and maintained. (b) Efficient, economic and effective use of resources must be promoted. (c) Public administration must be development-oriented. (d) Services must be provided impartially, fairly, equitably and without bias."

The Registrar's conduct, Hanekom's silence, and the Judge Presidents' inaction violate every one of these principles.

13. POPIA BREACH – ARMSTRONG v CITY OF CAPE TOWN DATA LEAK

The Undisputed Fact

On 10 April 2026 at 09:32, Registrar Tsakani Soundy transmitted the stamped court documents of a third party – Peter Armstrong v City of Cape Town – to the Applicant as purported "proof" of his own filing.

Legal Position – Section 8 of POPIA

“A responsible party must, prior to processing the personal information of a data subject, ensure that the data subject is aware of: (a) the information being collected; (b) the purpose for which it is being collected; (c) whether the supply of the information is voluntary or mandatory; (d) the consequences of failure to provide the information; (e) the recipients of the information; (f) the right of access to and correction of the information; (g) the right to object to the processing of the information.”

The Breach

- Unauthorised disclosure of another litigant’s confidential judicial records.
- Provision of false confirmation of filing.
- Exposure of the third party’s identity without consent.

Forensic Implication

This was not a technical error. This was a direct violation of Section 8 of POPIA. The Information Regulator must be notified and must investigate.

14. JUDICIAL CONDUCT – THE “AMBULANCE AT THE COURTHOUSE” PRINCIPLE

The 25 March 2026 High Court Hearing

The Applicant appeared before Judge Anderson in Case No: 2026-066952 under conditions of documented extreme psychological duress.

The Unauthorized Representative

An Advocate attended the proceedings without the Applicant’s mandate and unilaterally assumed conduct of the matter. The direct consequence of this unauthorized intervention was that the matter was struck from the roll with a punitive Scale C costs order against the Applicant. This same Advocate was thereafter removed from the Judge’s chambers and placed under 72-hour involuntary psychiatric observation – an outcome the Court witnessed in real time.

The “Ambulance at the Courthouse” Principle

A court of law may not base a punitive order upon the conduct of a party’s purported representative when that representative was, at the material time, in an acute state of psychiatric crisis – a crisis the Court itself witnessed and was thereby placed on legal notice of.

The Applicant’s Position

The Applicant is a specialist registered nurse with 16 years of clinical governance experience. He identifies the Advocate's conduct on 25 March as consistent with acute mental decompensation. The resulting costs order was therefore granted on the basis of legally tainted conduct and is voidable on that ground alone.

Forensic Implication

The punitive costs order (Scale C) was granted based on the conduct of a representative who was in a state of psychiatric crisis – a fact the Court witnessed. The order is voidable. The audio recording is essential to establish this fact.

15. FINAL DEMANDS

Action Required	Legal Basis	Deadline
Enrol Case 2026-077546 on the Unopposed Roll for default judgment	Rule 16(1) – mandatory	Within 5 court days
Provide written confirmation of enrolment and hearing date	Rule 16(1) & administrative duty	Within 5 court days
Rectify the “ghost notification” system failure	POPIA & due process	Immediately
Provide the official audio recording of the 16 April 2026 High Court proceedings	Section 34 & due process	Within 5 court days
Provide the official audio recording of the 25 March 2026 High Court proceedings	Section 34 & due process	Within 5 court days
Acknowledge and place the Unilateral Pre-Trial Minute (Case No: 2026-083299) before a Judge	Labour Court Rules	Within 5 court days
Acknowledge that administrative failures will not prejudice this litigant	Munozohamba	Within 5 court days
Acknowledge that Registrar Soundy's upload of documents constitutes the court's acceptance of filing	Administrative law	Within 5 court days
Acknowledge the formal escalation (EH/JO/2026/003) and provide a substantive response	Judicial oversight	Within 5 court days
Provide a written explanation for the POPIA breach (Armstrong v City of Cape Town)	POPIA Section 8	Within 5 court days
Review and suspend enforcement of the Scale C punitive costs order	Biowatch principle	Within 5 court days

16. CONSEQUENCES OF NON-COMPLIANCE

Failure to comply with the above demands will trigger the following without further notice:

16.1 Information Regulator Complaint

- POPIA breach for unauthorised processing of personal data (ghost notification)
- POPIA breach for failure to ensure data integrity
- POPIA breach for unauthorised disclosure of third-party documents (Armstrong v City of Cape Town)
- POPIA breach for failure to rectify inaccurate information

16.2 Parliamentary Oversight Submission

The Consolidated Forensic Oversight Report is already being finalised for submission to:

- Portfolio Committee on Justice and Constitutional Development
- Portfolio Committee on Health
- Portfolio Committee on Employment and Labour
- Standing Committee on Finance
- The National Speaker of Parliament (regarding the High Court audio request and misrepresentation)

16.3 Judicial Service Commission Complaint

- For administrative malfeasance by court officials (Ismail, Soundy, Hanekom)
- For failure to uphold the principles of public administration under Section 195
- For complicity in misrepresentation to Parliament
- For the conduct of Judge Anderson on 25 March 2026
- For the failure of Judge Presidents to respond to formal escalation

16.4 Legal Practice Council Referral

- For opposing counsel's attrition tactics (Deneys Reitz Inc. – Jason Whyte & Frances Barker)
- For exploitation of a destitute self-represented litigant
- For potential misrepresentation to Parliament

16.5 South African Human Rights Commission Complaint

- For violation of Section 34 – Right of Access to Courts
- For systemic obstruction of justice
- For denial of access to evidence (audio recordings)
- For violation of Section 9 – Equality (discrimination against self-represented, destitute litigant)

17. CERTIFICATE OF SERVICE

I, Wilbur William Matthee, hereby certify that a true copy of this FINAL CLOSURE REPORT was served on 23 June 2026 via email to:

Recipient	Email Address
Ruanne David (Director of Court Operations)	RDavid@judiciary.org.za
Nicola Hanekom (Acting Chief Registrar)	NHanekom@judiciary.org.za
Farzaana Ismail (Registrar)	FIsmail@judiciary.org.za
Tsakani Soundy (Registrar)	TSoundy@judiciary.org.za
Office of the Chief Justice	ServiceDelivery@justice.gov.za
The Honourable Judge President, Labour Court	(Via Director David)
The Honourable Judge President, High Court	(Via Director David)
National Speaker of Parliament	(To Parliamentary Portfolio Committee)
Portfolio Committee on Justice (Adv. Ramaano)	vramaano@parliament.gov.za
Portfolio Committee on Justice (Mr. Mthonjeni)	mmthonjeni@parliament.gov.za
South African Human Rights Commission	info@sahrc.org.za
Information Regulator	(To be submitted separately)
Judicial Service Commission	(To be submitted separately)
Legal Practice Council	(To be submitted separately)

18. FINAL DECLARATION

This is the final administrative interaction between the Applicant and the Office of the Chief Justice regarding these matters.

The Registrar's contradictory positions, the "ghost notification," the system failures, Hanekom's silence on the audio request, the failure to acknowledge the Unilateral Pre-Trial Minute, the POPIA breach, the judicial conduct on 25 March 2026, the Judge Presidents' silence on the formal escalation, and the procedural obstruction have been exhaustively documented and will now be ventilated before:

- The Information Regulator – for POPIA breaches.
- Parliamentary Portfolio Committees – for oversight failure and misrepresentation to the National Speaker.
- The Judicial Service Commission – for administrative malfeasance and judicial conduct.
- The South African Human Rights Commission – for constitutional violations.
- The Legal Practice Council – for opposing counsel's conduct.

GOVERN YOURSELVES ACCORDINGLY.

Wilbur William Matthee

RN | BTech General Nursing | Psychiatry | Midwifery | Community Health

PGDip Health Services Management (NQF 8)

Founder – EthicHawks Forensic Governance & Compliance Consultancy

CI (SA) Compliance Practitioner (Associate) – CISA Pledge to the Code of Ethical and Professional Conduct

info@ethichawks.co.za | 069 635 1435 | Cape Town, South Africa

Enclosures

- Consolidated Forensic Oversight Report (Digital Dossier)
- Parliamentary Memorandum (EH/JO/2026/001 – 10 April 2026)
- Public Statement (13 April 2026)
- Formal Escalation (EH/JO/2026/003 – 09 June 2026)
- Record of Registrar Soundy's Upload Assistance (05 May 2026)
- Record of Registrar Ismail's Contradiction (12 May vs. 10 June 2026)
- Record of "Ghost Notification" (18 June 2026)
- Director David's Admission (22 June 2026)
- Urgent Audio Request to Acting Chief Registrar Hanekom (03 June 2026)
- Unilateral Pre-Trial Minute (Case No: 2026-083299)
- Deney's Reitz Inc. Correspondence to Parliament (03 June 2026)
- POPIA Breach Record – Armstrong v City of Cape Town (10 April 2026)

END OF REPORT

ANNEXURE

A3

Notice of Administrative Default

Date of Evidence:	1 July 2026
Related Complaint:	Systemic escalation supporting Complaints 2, 3 and 4
Issued To:	Office of the Chief Justice (OCJ)
Case Reference(s):	2026-086906; 2026-077546
Statutory Reference:	PAIA – deemed refusal; POPIA Section 23
Evidence Type:	Formal notice

This annexure places the OCJ on formal notice of administrative default arising from its failure to respond substantively to outstanding requests.

Evidence for A4 follows on the next page.

NOTICE OF ADMINISTRATIVE DEFAULT AND FINAL DEMAND

Ref: EH/JO/2026/003 | 01 July 2026

TO:

The Honourable Judge President, Labour Court of South Africa (Cape Town)

The Honourable Judge President, High Court of South Africa (Western Cape Division)

Director Ruanne David, Office of the Chief Justice (Director of Court Operations)

The Registrar(s), Labour Court & High Court (Western Cape)

DATE: 01 July 2026
FROM: Wilbur William Matthee | EthicHawks Forensic Governance & Compliance Consultancy
REF: EH/JO/2026/003 | EthicHawks Final Closure Report (23 June 2026)
SUBJECT: **FORMAL NOTICE OF ADMINISTRATIVE DEFAULT AND FINAL DEMAND – SYSTEMIC FAILURE TO EXECUTE STATUTORY DUTIES**

1. INTRODUCTION

This notice serves as a formal declaration of administrative default. Despite prior escalations, specifically the Formal Escalation (Ref: EH/JO/2026/003), this office remains in receipt of zero substantive responses from the respective Registrars or the offices of the Judge Presidents regarding the matters enumerated in the EthicHawks Final Closure Report (23 June 2026).

2. THE DEFAULT

The Registry's failure to acknowledge filings, specifically the Unilateral Pre-Trial Minute in Case No: 2026-083299, and the failure to provide the requested audio recordings, constitutes a functional denial of the right of access to courts as guaranteed under Section 34 of the Constitution of the Republic of South Africa.

NON-DISCRETIONARY DUTY	Under Labour Court Rule 16(1), the Registrar's duty to enrol matters is mandatory and non-discretionary. The Registrar has no authority to substitute procedural preference for the imperative wording of the Rules.
SYSTEMIC FAILURE	The "ghost notifications" and admitted system challenges, as acknowledged by Director Ruanne David on 22 June 2026, do not absolve the Registry of its constitutional duty to ensure a functional, fair, and accessible judicial process.

3. FINAL DEMANDS

Given the ongoing silence and the absence of any substantive engagement, this notice provides a final period of five (5) court days from the date of receipt for the following actions to be completed:

1. **ENROLMENT:** Immediate enrolment of Case No: 2026-077546 on the Unopposed Roll for default judgment in terms of Labour Court Rule 16(1).
2. **ACKNOWLEDGMENT:** Written confirmation of receipt and placement of the Unilateral Pre-Trial Minute (Case No: 2026-083299) before a Judge for case management directives.
3. **DISCLOSURE:** Provision of the official audio recordings for the High Court proceedings of 25 March 2026 (Case No: 2026-066952) and 16 April 2026 (Case No: 2026-086906), as requested on 26 March 2026 and 03 June 2026 respectively.
4. **RECTIFICATION:** Substantive written response to the Formal Escalation (EH/JO/2026/003) from the offices of the respective Judge Presidents.

⚠ FIVE-DAY DEADLINE

All demands must be fulfilled within five (5) court days of receipt of this notice.
Non-compliance will be treated as an admission of institutional obstruction.

4. CONSEQUENCES OF NON-COMPLIANCE

Failure to rectify these administrative defaults within the stipulated five-day period will be treated as an admission of institutional obstruction. The following escalations will proceed immediately and without further notice:

- **JUDICIAL SERVICE COMMISSION (JSC):** Formal complaint regarding the dereliction of administrative and judicial oversight duties by court officials and the Judge Presidents of both the Labour Court and High Court (Western Cape Division).
- **PARLIAMENTARY PORTFOLIO COMMITTEES:** Presentation of the Consolidated Forensic Oversight Report to the Portfolio Committee on Justice and Constitutional Development, the Portfolio Committee on Employment and Labour, and the National Speaker of Parliament, documenting the failure of the justice system to provide basic administrative due process to a self-represented litigant.
- **INFORMATION REGULATOR:** Formal complaint reporting the POPIA breaches and data integrity failures, including the unauthorised disclosure of third-party judicial documents (Armstrong v City of Cape Town) and the "ghost notification" system failures, as documented in the Final Closure Report.

This list of escalations is not exhaustive. Further referrals to the South African Human Rights Commission (Section 9 and Section 34 violations) and the Legal Practice Council (conduct of Deneys Reitz Inc.) will proceed in parallel.

GOVERN YOURSELVES ACCORDINGLY.

CERTIFICATE OF SERVICE

I, Wilbur William Matthee, do hereby confirm that this Notice has been transmitted via electronic mail to the offices of the aforementioned parties on 01 July 2026. A digital log of transmission, including timestamps and read receipts, is maintained within the EthicHawks audit trail.

Recipient	Email Address
-----------	---------------

The Honourable Judge President, Labour Court	(Via Director David – RDavid@judiciary.org.za)
The Honourable Judge President, High Court	(Via Director David – RDavid@judiciary.org.za)
Director Ruanne David (Court Operations)	RDavid@judiciary.org.za
Registrar Farzaana Ismail	FIsmail@judiciary.org.za
Registrar Tsakani Soundy	TSoundy@judiciary.org.za
Acting Chief Registrar Nicola Hanekom	NHanekom@judiciary.org.za
Office of the Chief Justice	ServiceDelivery@justice.gov.za
Jason Whyte, Deneys Reitz Inc. (For Notice Purposes Only)	Jason.whyte@deneys.co.za

Wilbur William Matthee

RN | BTech General Nursing | Psychiatry | Midwifery | Community Health

PGDip Health Services Management (NQF 8)

Founder – EthicHawks Forensic Governance & Compliance Consultancy

CI (SA) Compliance Practitioner (Associate) – CISA Pledge to the Code of Ethical and Professional Conduct

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END OF NOTICE

ANNEXURE

A4

CHRONOLOGICAL TABLE OF CORRESPONDENCE

Date of Evidence:	March 2026 – Present July 2026
Related Complaint:	OCJ Online Portal — 2026 Chronological Table of Correspondence
Responsible Official:	The Office of The Chief Justice
Case Reference(s):	2026-077546
Statutory Reference:	
Evidence Type:	Correspondence log

This annexure contrasts two irreconcilable official positions issued a month apart regarding the same matter, evidencing the manufactured procedural barrier.

CHRONOLOGICAL TABLE OF CORRESPONDENCE

OCJ Online Portal — 2026

Date / Time	Sender / Recipient	Type of Correspondence	Key Message / Notes
Thu, 05 Mar • 05:43	OCJ_Online_Portal_1	e-Services Registration	OTP: 10113 – Confirmation of registration on e-Government Portal
Thu, 12 Mar • 17:34	OCJ_Online_Portal	Initiating Document Received	"Your Initiating Document has been received"
Fri, 13 Mar • 12:33	OCJ_Online_Portal_1	Rejection	"Your Initiating Document has been rejected"
Fri, 13 Mar • 12:33	OCJ_Online_Portal_1	Password Reset	"You have successfully reset your password"
Fri, 13 Mar • 12:33	OCJ_Online_Portal_1	Account Reactivation	Account reactivated notification
Fri, 13 Mar • 13:58	OCJ_Online_Portal	Initiating Document Received	"Your Initiating Document has been received"
Wed, 18 Mar • 09:20	OCJ_Online_Portal_1	Rejection	"Your Initiating Document has been rejected"
Wed, 18 Mar • 09:31	OCJ_Online_Portal	Password Reset	"You have successfully reset your password"
Wed, 18 Mar • 09:31	OCJ_Online_Portal	Account Reactivation	Account reactivated notification (duplicate)
Wed, 18 Mar • 14:07	OCJ_Online_Portal_1	Initiating Document Received	"Your Initiating Document has been received"
Thu, 19 Mar • 07:21	OCJ_Online_Portal_1	Rejection	"Your Initiating Document has been rejected"
Thu, 19 Mar • 13:58	OCJ_Online_Portal_1	Initiating Document Received	"Your Initiating Document has been received"
Fri, 20 Mar • 11:43	OCJ_Online_Portal	Rejection	"Your Initiating Document has been rejected"
Fri, 20 Mar • 13:47	OCJ_Online_Portal	Initiating Document Received	"Your Initiating Document has been received"
Mon, 23 Mar • 06:29	OCJ_Online_Portal_1	Case Filed	"Your Initiating Document to commence a case has been filed"
Mon, 23 Mar • 06:29	OCJ_Online_Portal_1	Hearing Scheduled	"A Hearing has been scheduled"
Mon, 23 Mar • 11:59	OCJ_Online_Portal_1	Hearing Scheduled	"A Hearing has been scheduled"
Mon, 23 Mar • 12:37	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court"
Mon, 23 Mar • 12:37	OCJ_Online_Portal	Document Filed	"Your document has been filed by OCJ Courts"
Mon, 23 Mar • 14:15	OCJ_Online_Portal	Case Access Granted	"You have been granted access to a case"
Tue, 24 Mar • 11:28	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court"
Tue, 24 Mar • 15:28	OCJ_Online_Portal	Hearing Scheduled	"A Hearing has been scheduled"
Thu, 02 Apr • 00:47	OCJ_Online_Portal	Initiating Document Received	"Your Initiating Document has been received"

Date / Time	Sender / Recipient	Type of Correspondence	Key Message / Notes
Thu, 02 Apr • 08:36	OCJ_Online_Portal_1	Case Filed	"Your Initiating Document to commence a case has been filed"
Tue, 07 Apr • 15:45	OCJ_Online_Portal_1	Initiating Document Received	"Your Initiating Document has been received"
Wed, 08 Apr • 10:35	OCJ_Online_Portal_1	Rejection	"Your Initiating Document has been rejected"
Mon, 13 Apr • 11:56	OCJ_Online_Portal	Initiating Document Received	"Your Initiating Document has been received"
Mon, 13 Apr • 11:58	OCJ_Online_Portal_1	Case Filed	"Your Initiating Document to commence a case has been filed"
Wed, 15 Apr • 12:25	OCJ_Online_Portal_1	Document Filed	"Your document has been filed by OCJ Courts" (x4)
Wed, 15 Apr • 12:25	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court" (x2)
Wed, 15 Apr • 18:20	OCJ_Online_Portal_1	Case Access Granted	"You have been granted access to a case" (x2)
Thu, 16 Apr • 17:02	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court" (x4)
Thu, 16 Apr • 17:04	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court" (x2)
Thu, 23 Apr • 10:48	OCJ_Online_Portal	Case Access Granted	"You have been granted access to a case"
Fri, 24 Apr • 19:15	OCJ_Online_Portal	Status message only	(Sending with 2 rain)
Thu, 30 Apr • 10:05	OCJ_Online_Portal	Initiating Document Received	"Your Initiating Document has been received"
Thu, 30 Apr • 10:05	OCJ_Online_Portal	Rejection	"Your Initiating Document has been rejected"
Sun, 03 May • 14:40	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court" (x6)
Sun, 03 May • 14:40	OCJ_Online_Portal_1	Status message only	(Sending with 2 rain)
Mon, 04 May • 11:55	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court" (x6)
Mon, 04 May • 11:56	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court" (x7)
Tue, 05 May • 15:07	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court"
Tue, 05 May • 15:07	OCJ_Online_Portal	Document Filed	"Your document has been filed by OCJ Courts"
Tue, 05 May • 15:09	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court"
Thu, 07 May • 09:50	OCJ_Online_Portal_1	Document Filed & Submitted	Multiple notifications (filed & submitted)
Tue, 19 May • 08:23	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court"
Tue, 19 May • 12:05	OCJ_Online_Portal_1	Hearing Scheduled	"A Hearing has been scheduled. Please log on to OCJ Court Online System for more details."
Tue, 19 May • 12:06	OCJ_Online_Portal	Hearing Scheduled	"A Hearing has been scheduled" (Duplicate)

Date / Time	Sender / Recipient	Type of Correspondence	Key Message / Notes
Tue, 19 May • 12:06	OCJ_Online_Portal	Document Filed	"Your document has been filed by OCJ Courts"
Tue, 19 May • 15:04	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court"
Thu, 21 May • 13:49	OCJ_Online_Portal	Document Filed & Submitted	Multiple notifications
Thu, 21 May • 13:51	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court"
Mon, 25 May • 17:06	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court" (x2)
Wed, 27 May • 13:57	OCJ_Online_Portal_1	Document Submitted	"A document has been submitted to the Court" (x4)
Wed, 27 May • 13:58	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court" (x4)
Fri, 29 May • 11:44	OCJ_Online_Portal	Document Submitted	"A document has been submitted to the Court"
Thu, 18 Jun • 10:55	OCJ_Online_Portal	 GHOST NOTIFICATION	"A Hearing has been scheduled. Please log on to OCJ Court Online System for more details."

Summary of Correspondence Types

Type	Count	Notes
Registration / OTP	1	e-Services registration
Password Resets	3	Multiple reset notifications
Account Reactivations	3	Duplicate reactivation notices
Initiating Document – Received	8	Document receipt confirmations
Initiating Document – Rejected	6	Multiple rejections without clear resolution
Initiating Document – Filed	4	Case commencement confirmations
Document Submitted	~40+	Excessive repetitive notifications
Document Filed	~12+	Filed confirmations
Hearing Scheduled	6	Including duplicate / ghost notifications
Case Access Granted	4	Access grant notifications

Ghost Notification — POPI Act Breach

Issue Identified

“A Hearing has been scheduled” notifications appear to be duplicate / ghost notifications that:

- Do not contain specific case details (no case number, court location, date/time, or judge information)
- Provide no actionable information beyond directing the user to log in
- May constitute spam / unsolicited communications under the POPI Act
- Appear to be system-generated with no meaningful content
- The last occurrence on Thursday, 18 June 2026 at 10:55 is particularly concerning as it provides no hearing details while scheduling multiple hearings

POPI Act Concerns

- Section 11 – Processing of personal information must be adequate, relevant, and not excessive
- Section 22 – Information must be collected directly from the data subject (not via vague notifications)
- Section 69 – Direct marketing restrictions (spam / unsolicited communications)
- Duplication – Multiple identical notifications constitute excessive processing
- Lack of specificity – Not providing actual hearing details undermines the purpose of the notification

Submission to Information Regulator

Subject	OCJ Court Online Portal – Ghost Notification / POPI Act Breach
Notification Type	“A Hearing has been scheduled”
Date of Concern	Thursday, 18 June 2026 • 10:55 (and preceding duplicates)
Issue	Unsolicited, vague notifications that do not provide necessary information; may constitute spam
POPI Act Section	Section 69 (Direct Marketing), Section 11 (Processing Principles)
Supporting Evidence	Chronological log showing multiple duplicate notifications without substantive information

Prepared by EthicHawks Forensic Governance & Compliance Consultancy for inclusion in the Forensic Governance Portfolio evidence record. Source data derived from OCJ Court Online System e-mail notification logs, 2026.